

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents & Third-Party Complainants,

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

**RESPONDENTS' PARTIAL OPPOSITION TO
COMPLAINANT'S SECOND MOTION FOR ENLARGEMENT OF TIME**

Respondents Orient Overseas Container Line Limited and OOCL (Europe) Ltd. (“OOCL” or “Respondents”) hereby respond in partial opposition to the Second Motion for Enlargement of Time (“Second Motion”) filed by Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”) on September 30, 2025.¹ As detailed below, Complainant’s request for a 30-day extension of its obligation to produce documents responsive to OOCL’s document requests should be denied for at

¹ Due to a lapse in appropriations, the Commission ceased operations as of midnight September 30, 2025. In a Notice Regarding Deadlines sent via email from the Office of the Administrative Law Judges at 9:01am (Eastern) on October 1, 2025, the parties were nevertheless instructed to “proceed with their cases to the extent possible, including conducting discovery....” The FMC shutdown has effectively provided SEA with additional time to produce documents.

least two reasons. First, SEA has made no meaningful showing, beyond mere platitudes, of “good cause” for any extension, much less an extension of such length. Second, it is undeniable, and SEA does not even purport to deny, that such an extension would severely prejudice OOCL and unfairly tilt the table substantially in favor of SEA.

OOCL does, however, agree with SEA’s alternative proposal that the Presiding Officer suspend the proceedings until the pending motions to dismiss are fully resolved. It has been OOCL’s view since the very outset of the litigation that fairness and efficiency will be best effectuated by determining the players before starting the game. Alternatively, the Presiding Officer should direct SEA to complete its production within seven (7) days of the Presiding Officer’s Order and direct that depositions of SEA by OOCL be deferred for at least thirty days² after the final production by SEA has been completed and provide an additional thirty days for OOCL to complete its depositions of SEA. Although this will not eliminate the prejudice suffered by OOCL, it will give OOCL some time to review SEA’s production in preparation for the questioning of SEA’s witnesses. We anticipate that this will also require an extension of the deadline for completing depositions of fact witnesses.

INTRODUCTION

Under the governing procedural schedule, the last date for each of the Parties to “complete” document production was September 30, 2025. Respondents more than met that requirement, serving documents on August 25 and September 26, 2025.³ Complainant, in contrast, did not meet its

² The exact amount of time needed by OOCL will of course depend not only on when SEA produces the rest of the documents, but also on the extent of SEA’s further tranches – e.g., 45,000 versus 145,000 documents. Accordingly, OOCL may need to seek leave to modify or supplement this aspect of the response once the shutdown ends.

³ Complainant makes the rather bizarre argument that OOCL did not timely meet its production obligations because documents in the first production were not necessarily in native format. Second Motion at 5. But even apart from the fact that OOCL has already provided its first set of documents in native format, there can be no dispute that SEA received the first set of documents and has been able to review them at its leisure since August 25, 2025.

obligation. Instead of completing its document production by September 30 as required by the Order of the Presiding Officer dated August 5, 2025, SEA waited until that last date to provide only its “first tranche” of documents. It is unknown and unstated by SEA when it will produce the remaining tranche(s).

On September 23, 2025, Complainant filed its first (mis-styled) motion for extension of time (“First Motion”), to which Respondent timely responded on September 29, 2025. On September 30, the Presiding Officer denied the First Motion (without prejudice), due to SEA’s failure to confer with Respondents prior to filing.⁴ As stated above, SEA filed the Second Motion later on September 30, that same day.

ARGUMENT

I. SEA Has Failed to Demonstrate “Good Cause” for a 30-Day Extension

Extensions of time must be based on a showing of “good cause.” 46 C.F.R. 502.102(a). The Second Motion refers to “good cause” only twice – first merely reciting it as the standard (Second Motion at 1), and second, asserting in breezy fashion that “multiple [unexplained] instances of good cause exist.” Second Motion at 7. Nowhere does it offer any explanation of why SEA was unable to make timely production of its documents, even though review of such documents would seem necessary to the determination that the Complaint it filed was well-grounded in fact, and even though

⁴ The Presiding Officer suggested some puzzlement with how the religious holiday (beginning on the evening of September 22 and continuing on the day of September 23) interfered with consideration of SEA’s last-minute request to confer. To clarify, Respondents are collectively represented by two law firms (Jeffrey/Fenneman and Cozen O’Connor), with Jeffrey/Fenneman being lead counsel. Due to SEA’s habit of contacting only one of the two law firms, we have been instructed to have both law firms confer at the partner level on all matters of consequence, such as the instant request for substantial time. In this case, SEA contacted Mr. Raleigh of Cozen O’Connor on September 23, who replied that he could not confer with SEA in the absence of input from a JFLS partner and that Ms. Fenneman, the only JFLS partner appearing in this matter, was unavailable that day due to the religious holiday. We encourage SEA to make requests to confer sufficiently early to allow the two law firms first to coordinate.

SEA reportedly was able to produce a great deal more documents in a timely manner in at least one of its other cases.

SEA's vague and conclusory explanations of why it requires an extension are unsupported by any detail, and they appear to be makeweights. Particularly stunning is SEA's argument that it could not produce documents until the Confidentiality Stipulation was entered into and approved by the Presiding Officer. Second Motion at 5. But SEA had no trouble receiving OOCL's documents on August 25 under a mutual understanding that documents marked confidential by OOCL would be treated by SEA as confidential. That understanding would have equally protected SEA documents produced to OOCL.

SEA states that an extension is warranted by the volume of data "necessary to prove and/or defend the allegations in this matter..." Second Motion at 3. But Respondent, likely faced with the same volume of data, timely collected, completed its review, and produced all of its responsive documents. This case has been pending for over 18 months. There is no reason why Complainant should not have begun collecting documents at that time, or shortly thereafter, as OOCL did. Document requests were served by OOCL in the proceeding on July 2, 2025, but that is no excuse for Complainant's tardy reaction. SEA surely knew even prior to filing its Complaint what types of documents would be relevant to its case and OOCL's defense, both as a general matter and from its experience in other cases and because OOCL had asked for such information when SEA made its first demand in 2022. And it is not even clear that SEA began collecting documents until well after the document requests were sent. The Second Motion does not say when SEA began searching for documents or what efforts, if any, it made to identify documents. It appears instead that Complainant has been deferring discovery production, perhaps hoping to achieve an unlikely settlement without having to spend time and money on discovery production, while Respondents have done exactly that.

The similar assertion that "good cause" arises from the large number of charges alleged by

SEA (Second Motion at 3), is likewise inconsistent with the fact that Respondents have managed not just to commence, but actually to complete production of documents in the same time it took SEA to do almost nothing. There can be no doubt that SEA has the capability to produce the documents within the time allowed, as it did exactly that in one of the other cases it has brought. SEA has reported in Docket No. 24-16, a proceeding involving vastly more claims, that it was able to produce over two million pages of documents within the time permitted. FMC Docket No. 24-16, *Samsung Electronics America, Inc. v. COSCO Shipping Lines Co., Ltd.* (Joint Motion for Extension of Time at 2 (Sept. 5, 2025) (Doc. 75). Similarly, in FMC Docket No. 24-23, SEA was able to produce over three million pages of documents within the required schedule. *Samsung Electronics America, Inc. v. HMM Co., Ltd.* (Joint Status Report at 2-3) (Sept.5, 2025) (Doc. 35). And as stated above, the fact that SEA counsel does not know what information it has about so many of SEA's claims raises questions about a complaint as to which counsel has certified that it has concluded, "after reasonable inquiry," that each claim is "well grounded in fact." 46 C.F.R. 502.6(a).

SEA asserts that additional time will allow the parties to narrow or eliminate discovery disputes. Second Motion at 5. But that is a day late and a dollar short, as it may save SEA time and expense, but Respondents have already produced all document discovery (at significant effort and expense), and thus would derive no benefit. Moreover, Complainant's raising of this issue only at the last minute (literally the last day of document production) without making any prior effort to narrow issues, rings hollow at best.

Shockingly, SEA asserts that more time is needed because its responses to interrogatories were grossly deficient. (Second Motion at 5). It may well be that a little time is needed for such modest matters, but a remediable deficiency in interrogatory responses is less significant than a failure to timely produce responsive documents. For one thing, as addressed immediately below, any further delay to OOCL's receipt of responsive documents from SEA is highly prejudicial to OOCL.

Even apart from the foregoing, it is unclear (and unstated) why SEA now requires additional time to gather documents that it should already have at its fingertips. OOCL first requested information about those charges in response to SEA's Demand Letter in October, 2022. Thus, there is no good cause shown for a last-minute extension three years later.

Accordingly, Complainant has failed to meet the standard for extension enunciated by the Presiding Officer when he stated that a Party (or Parties seeking an extension "will need to justify any extension requested, *and provide details* supporting the request." Amended Scheduling Order (Aug. 5, 2025) at 2 (emphasis added).

II. OOCL Would Be Severely Prejudiced by An Extension As Proposed By SEA

SEA asserts that "failure to grant the requested enlargement may result in prejudice." Second Motion at 7. But any such prejudice would be entirely of Complainant's own making – doing nothing until the very day it was supposed to "complete" production.

More importantly, Complainant totally ignores the substantial prejudice that would accrue to Respondents were the requested extension to be granted. As Respondents explained above, Respondents have already produced all relevant documents to SEA, on August 25 and September 26. Complainant's cavil about not receiving native documents for OOCL's first production is irrelevant, as OOCL reproduced those native files on October 2 and all of the documents in the August 25 production nevertheless were fully reviewable by SEA at its pleasure.

Under the Procedural Schedule, depositions of fact witnesses are to commence immediately following document discovery and are to be completed by October 31. Amended Scheduling Order (Aug. 5, 2025) at 3. SEA will no doubt be prepared for the depositions of OOCL's witnesses, as it has all of the OOCL documents necessary to prepare. But OOCL will be forced to conduct depositions of OOCL witnesses largely in the dark, as there is no way OOCL can review the vast number of documents SEA proposes to dump on OOCL and then proceed with effective depositions of SEA's

witnesses at the same time.

Ironically, SEA inveighs against the very creation of a “dual-track discovery and procedural schedule” (Second Motion at 3-4) at the same time that it seeks to create such a two-tier system in its favor, so that it can prepare for depositions, while OOCL cannot. Further, its new-found position that further discovery and scheduling should await decision by the Presiding Officer (and potentially again, the Commission) on the two motions to dismiss (Second Motion at 7) is precisely the reverse of what it argued before, when it successfully opposed OOCL’s position that all discovery should be stayed pending those decisions. ALJ Order dated June 11, 2025 (Doc. 49) at 4. This is a classic example of judicial estoppel which should otherwise bar SEA from obtaining the relief it seeks.

Although SEA is thus hoisted by its own petard, OOCL nevertheless agrees with SEA’s belated realization that judicial economy and fundamental fairness would be best served by suspending the proceeding until the motions to dismiss are fully resolved (including by the Commission and, perhaps, a federal court of appeals). Indeed, that has been OOCL’s consistent position all along. In the absence of such a stay, the only possible way to ameliorate the prejudice to OOCL from a grant of SEA’s Second Motion would be to give OOCL at least thirty days after SEA’s completion of its document production for OOCL to begin (and another 30 days to complete) depositions, so that OOCL would have the time it will require to effectively interrogate SEA’s witnesses.

CONCLUSION

For the reasons stated above, Respondents respectfully request that the Presiding Officer suspend the proceedings pending final resolution of the pending motions to dismiss. Should the Presiding Officer decide not to grant this agreed request, Respondents request an order directing SEA to complete its production of documents within seven (7) days of the Presiding Officer’s Order, and extend the deadline for OOCL to begin depositions for thirty (30) days from that date.

Dated: October 7, 2025

Respectfully Submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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By: /s/ Christopher Raleigh